Return To:
Wake EMC
Attn: Burt Pearson, III
228 Park Avenue
Youngsville, NC 27596

BOOK 1946 PAGE 708

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23263

ELECTRIC LINE RIGHT OF WAY EASEMENT
OVERHEAD DISTRIBUTION LINES

STATE OF NORTH CAROLINA

LOCATION NUMBER 2639-48-6713

COUNTY OF JOHNSTON

KNOW ALL MEN BY THESE PRESENTS, that we the undersigned (whether one or more)

WAYNE COCKRELL & wife

PATRICIA L. COCKRELL

hereinafter referred to as "grantor" do hereby give, grant and convey unto the said Wake Electric Membership Corporation (hereinafter referred to as "Corporation"), its successors, lessees and assigns, the perpetual right, privilege, and easement:

(I) Property Description:

To go in and upon the lands of the grantor, consisting of approximately 1 ± acres, situated on or near State Road No. 1934, in said County and State, said lands of grantor being bounded by the lands of WILLIAM CROOM to the SOUTH with NCSR 1934 to the WEST

(II) Right-of Way Description:

The Distribution Line Right-of-Way is defined as a space 30 feet wide, 15 feet on each side of the center-line of distribution line, except for guy wires extending beyond 15 feet from poles, PRIMARY DISTRIBUTION LINE TO FOLLOW COURSE OF NCSR 1934

(III) Purpose

(A) To construct, reconstruct, operate, maintain and repair in, upon, over, under and through said land, within a right of way herein defined, and/or in, upon, under, over or along all streets, roads, highways, or waterways thereunto abutting, in a proper manner, with poles, structures, overhead and underground wires, guy wires, and other necessary fixtures, apparatus, electric distribution lines or systems, for the purpose of distributing electricity by one or more circuits and or carrying telephone or cable TV wires of the Corporation or any lessee thereof;

(B) To enter upon said land at any time for the purpose of inspecting said lines and facilities and making necessary repairs, changes and alterations thereof;

(C) To, by mechanical or chemical means or otherwise, keep and maintain a right of way clear of all structures (except ordinary fences), trees, stumps, roots, shrubbery and undergrowth along said lines, facilities or structures; and

(D) To cut or fell any tree or trees outside of said right of way herein granted which, in the opinion of the Corporation or its representative(s), constitute a hazard to or may endanger the safe and proper operation or maintenance of said lines, facilities or structures, a danger tree being any tree whose height plus five feet is equal to or greater than the distance from the base thereof to a point on the ground directly beneath the nearer side of the nearest conductor or to the nearest conductor itself.

The grantor agrees that all lines, facilities, structures and related apparatus installed on the above-described land by the Corporation or its representative(s) shall be and remain the property of the Corporation, removeable or replaceable at its option; and that the grantor will not construct any structure (other than ordinary fencing) within the cleared portion of said right of way, except upon the prior agreement thereto by the Corporation in writing.

ELECTRIC LINE RIGHT OF WAY EASEMENT
OVERHEAD DISTRIBUTION LINE

The Corporation agrees that in locating and installing its structures and anchors, it will endeavor to take advantage of roadways, streets, ditches, drainage or other utility easement, hedgerows, etc., so as to cause the least interference to the grantor and his use of said land.

TO HAVE AND TO HOLD the aforesaid rights, privileges and easement unto the Wake Electric Membership Corporation, its successors and assigns, forever.

The undersigned covenant that they are the owners of the above-described lands and that the said lands are free and clear of encumbrances and liens of whatsoever character except those held by the following persons:

_____

_____

IN WITNESS WHEREOF, Grantors have set their hands and seals, this 25th day of MAY, ~~19~~ 2000

Wayne Cockrell (SEAL)

Patricia L. Cockrell (SEAL)

_____ (SEAL)

_____ (SEAL)

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STATE OF NORTH CAROLINA

COUNTY OF JOHNSTON

I, RAY DORMAN, a Notary Public in and for the County of GRANVILLE, State of North Carolina, certify that

WAYNE COCKRELL

PATRICIA L. COCKRELL Personally appeared before me this day and acknowledge the due execution of the foregoing deed of easement.

WITNESS my hand and official seal, this 25th day of MAY, ~~19~~ 2000

Ray Dorman
Notary Public

My commission expires: 11/30/03

RAY DORMAN NOTARY PUBLIC GRANVILLE COUNTY, N.C.

State of North Carolina-Johnston County
The foregoing Certificate(s) of Ray Dorman
Notary (Notaries) Public is (are) certified to be correct.
This instrument was prepared for registration and recorded in Book 1946 Page 708
This 26 June, 20 00 at 12:15 PM
Cecil M. Massenpill
Register of Deeds
Deputy Register of Deeds